

4	Worobey v. Pinkert 2026-01545485 Motion to Strike Complaint	Defendant Tony Pinkert's Motion to Strike Portions of First Amended Complaint is DENIED. A plaintiff may seek punitive damages only "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210.) A claim for punitive damages is not viable where the complaint relies on "conclusory allegations" and "is devoid of any factual assertions supporting a conclusion [defendant] acted with oppression, fraud or malice." (<i>Smith v. Superior Court</i> (1992) 10 Cal.App.4th 1033, 1042.) Here, Plaintiffs allege claims for negligence, breach of implied warranty of habitability, and private nuisance against Defendant, their landlord, related to alleged water damage, mold, and other habitability issues regarding the subject residence. Plaintiff Ryan Worobey was the tenant and Plaintiff Cassidy Hennessy was his girlfriend, a frequent visitor at the property. Defendant contends Plaintiffs have failed to allege facts showing he acted with malice, despicably, or in conscious disregard of Plaintiffs' rights. Plaintiffs respond that their claims go beyond negligence and include allegations that Defendant wrongfully concealed known mold/water damage from prior tenancies which he failed to remedy or disclose. Plaintiffs cite case law holding that a landlord may be held liable for punitive damages if intentional misconduct relating to a known unsafe/dangerous condition is proven. (Opp., pp. 9-11; see <i>Stoiber v. Honeychuck</i> (1980) 101 Cal.App.3d 903, 920 [nuisance claim pled as intentional tort based on actual knowledge of unsafe property conditions may support punitive damages].) The motion is denied. Plaintiffs have sufficiently alleged that Defendant acted with conscious disregard of
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		Plaintiffs' health and safety sufficient to support a claim for punitive damages at the pleading stage.
5	All Inclusive Insurance Services, LLC v. EOS Organization, LLC 2023-01310746 Motion to Strike Answer	Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes' motion to strike the Answer of Defendant EOS Organization, LLC ("EOS"); and for terminating sanctions against EOS is CONTINUED to September 28, 2026, at 1:45 p.m. The proof of service shows Plaintiffs served the moving papers on EOS who is appearing in <i>pro per</i> via email. (ROA 369.) There is no proof that EOS consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the moving papers by electronic mail on EOS was insufficient. Plaintiffs are ORDERED to serve the moving papers and give notice of the continued hearing date on EOS pursuant to Code of Civil Procedure within 5 days of this ruling and file proof of service of the same within 10 days. Plaintiffs to give notice.
6	Barrera v. Mother's Market & Kitchen, Inc. 2025-01480339 Motion for Leave to File Cross Complaint	Defendant Mother's Market & Kitchen, Inc.'s unopposed Motion for Leave to File a Cross-Complaint is GRANTED. Defendant is ORDERED to file the attached Cross-Complaint within 5 days of this order. "A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.) There is no indication of bad faith in filing the proposed Cross-Complaint. Defendant discovered the alleged cause of Plaintiff's injuries was a product of Simply Layered, Inc. after discovery was conducted. (Rystad Decl., ¶¶ 4-9.) Additionally, the Cross-Complaint arises out of the same occurrences as the Complaint, thus, it would serve judicial economy to allow the Cross-Complaint to be filed. Thus, Defendant's Motion is GRANTED
7	Turner v. Gordy	Plaintiff/Cross-Defendant Renita R. Turner's Motion to Set Aside is DENIED.